

Legal and Archival Framework Analysis for a Novel "Pay-It-Forward" Open Seed License for Agentic Systems and Prompt Architectures

1. Introduction to the Paradigm Shift in Software Authorship

As computational paradigms shift from deterministic, human-authored codebase compilation toward non-deterministic, agentic workflows, the foundational mechanisms of intellectual property (IP) and open-source licensing are experiencing unprecedented friction. In contemporary generative architectures, structured natural language prompts, markdown-based research specifications, and dynamic agent instructions have usurped traditional programming languages to function as the new "source code." These artifacts dictate logical execution, algorithmic reasoning, tool utilization, and output generation. However, applying twentieth-century software licenses, data copyright doctrines, and unilateral human authorship models to these hybrid human-AI creations exposes severe legal and structural vulnerabilities¹. Traditional legal doctrines, including copyright and patent law, assume a traceable, solely human provenance¹. Yet, agentic systems irreducibly entangle human cognitive intent with machine-generated algorithmic structures, creating what stylometry researchers identify as complex dyadic and triadic human-AI collaborations³. Current legal frameworks force these entities into obsolete categories, treating artificial intelligence either as a simple passive tool analogous to a camera, or rejecting the outputs entirely due to the absence of a human author⁵. Furthermore, as these dynamic "seeds" mutate autonomously during agent execution, distinguishing between the shared, functional algorithmic framework and the user's private contextual memory becomes a paramount privacy and regulatory concern⁷. This comprehensive report conducts an exhaustive analysis of existing open-source, open-access, and digital archival licensing frameworks to identify the legal vacuums surrounding agentic systems. It explores the copyrightability of prompt architectures under international law, the role of computational stylometry in verifying multi-party authorship, and the explicit archival requirements necessary to protect public memory institutions such as Software Heritage. The analysis culminates in the detailed architectural design of a novel, community-oriented "Pay-It-Forward" Open Seed and Spec License (OSSL), a framework uniquely engineered to legally mandate multi-party (AI and biological) ownership and responsibility while fiercely safeguarding personal data sovereignty.

2. Landscape and Gap Analysis of Existing Licenses

The open-source ecosystem relies on a patchwork of licenses engineered primarily for deterministic object code, static datasets, and human-authored creative works. When applied to structured natural language prompts, continuous execution loops, and dynamic agent specifications, these frameworks exhibit fatal incompatibilities that jeopardize the open commons.

2.1 Software Licenses: The Ambiguity of "Source Code" and "Conveying"

The Free Software Foundation's General Public License (GPL) and the Affero General Public License (AGPL) rely heavily on definitional triggers such as "Source Code," "Object Code," and "Corresponding Source." Under the GPLv3, "source code" is explicitly defined as the "preferred form of the work for making modifications to it"⁸. In the context of large language models (LLMs) and agentic systems, if developers iteratively modify a structured markdown prompt, context window parameters, or retrieval-augmented generation (RAG) tool schemas to alter the system's behavior, that prompt scaffolding is unequivocally the source code¹⁰.

However, enforcing copyleft provisions via the AGPLv3 for agentic systems presents significant operational friction. The AGPLv3's Section 13 mandates that if a modified program is interacted with remotely over a computer network, the operator must provide the "Corresponding Source" to the users¹¹. For a deterministic web application, distributing the backend codebase satisfies this requirement. For an autonomous AI agent, the "Corresponding Source" theoretically includes not only the static system prompt but the continuously evolving contextual memory, episodic knowledge graphs, and dynamic sub-prompts generated in real-time. Distributing this evolving state violates user privacy by exposing private interaction data, while stripping the state renders the distributed source code incapable of reproducing the agent's specific behavior. Furthermore, the GPL definitions of "Conveying" and "Propagation" fail to account for non-deterministic semantic reasoning structures that evolve post-deployment without direct human code compilation⁹.

2.2 Content and Data Licenses: The Semantic Reasoning Gap

Creative Commons (CC) licenses, such as CC-BY-SA 4.0, are optimized for static artistic and literary works and are fundamentally inadequate for executable prompt chains. They do not structurally distinguish between the source format (the underlying prompt logic) and the object format (the rendered generated output). A generative prompt chain licensed under CC-BY-SA 4.0 would theoretically require downstream users to share the resulting generated text or image under the same terms, creating massive, unintended copyright entanglement on the outputs¹⁵. CC licenses lack the precise mechanisms to compel the disclosure of the underlying execution logic or system architecture, treating the functional instruction as mere text.

Similarly, data-centric licenses like the Open Data Commons Open Database License (ODbL) and the Community Data License Agreement (CDLA) are designed strictly to protect the

selection, arrangement, and sharing of static databases¹⁶. They fail entirely to handle semantic reasoning structures. A dataset of system prompts might be protected against unauthorized extraction under ODbL, but the dynamic algorithmic behavior triggered by a single prompt operating within a generative execution environment falls entirely outside the purview of database protection rights.

2.3 AI-Specific and Responsible Licenses: Enclosure and Attribution Loss

To address the unique risks of machine learning, the ecosystem has witnessed the emergence of Responsible AI Licenses (RAILs), including the CreativeML OpenRAIL-M used by Stable Diffusion, and the BigCode RAIL¹⁷. These licenses attempt to balance open access with ethical constraints by embedding use-based behavioral restrictions, explicitly prohibiting the generation of illegal, defamatory, or discriminatory content¹⁸.

While RAILs and Ethical Source licenses address behavioral concerns, they fall profoundly short in fostering an open archival commons. Primarily, behavioral restrictions violate the Open Source Initiative's (OSI) strict requirement for unrestricted use across all fields of endeavor, placing these licenses outside the universally accepted definition of open source¹⁷. Secondly, empirical supply-chain audits reveal catastrophic compliance failures in the distribution of AI artifacts. Recent research indicates that 96.5% of datasets and 95.8% of models distributed under supposedly permissive open AI licenses fail to include the requisite license text, and only a fraction of a percent preserve upstream attribution in downstream applications¹⁹. This widespread "attribution loss" severs the legal chain of custody, leaving downstream AI artifacts in a state of default copyright enclosure and placing archival institutions at massive risk of infringement when attempting to preserve these models¹⁹.

2.4 Comparative Matrix of Existing Licensing Frameworks

License Framework	Suitability for Agentic "Source Code"	Handling of Semantic/Generative Outputs	Archival Preservation Clarity	Multi-Party / Hybrid Ownership Capability
GPLv3 / AGPLv3	High for deterministic code; breaks down for dynamic context/memory states ¹⁰ .	Fails to distinguish between non-deterministic output and functional architectural derivatives.	Poor. Does not address long-term cryptographic identifiers (e.g., SWHID).	None. Assumes singular or joint human authorship models ¹ .

Apache 2.0 / MIT	High for traditional software; highly ambiguous for natural language prompt engineering.	Silent. Does not require downstream sharing of generated architectures or output logs.	Moderate. Highly permissive, reducing archival risk, but lacks specific perpetual deposit clauses.	None. Assumes traditional human corporate or individual entities.
CC-BY-SA 4.0	Inadequate. Cannot mandate the distribution of functional underlying prompt logic.	ShareAlike triggers on the output, creating massive copyright entanglement on generated art/text ¹⁵ .	Moderate. Widely understood by memory institutions, but lacks software-specific execution metadata.	None. Strictly designed for human-authored creative expression.
ODbL / CDLA	Poor. Focuses on data aggregation, not executable algorithmic reasoning ¹⁶ .	Does not address the generative transformation of data into executable agent tasks.	High for static datasets; weak for evolving generative states and memory vectors.	None. Focused on database creators.
OpenRAIL-M	Moderate. Specifically designed for AI models and weights, but not prompt pipelines ¹⁸ .	Imposes strict behavioral restrictions on outputs, creating complex downstream compliance burdens ¹⁸ .	Very Poor. Widespread attribution loss and missing license texts imperil archiving institutions ¹⁹ .	None. Leaves the authorship of the prompt architectures in a legal gray area.
Proposed OSSL	Optimal. Defines prompt	Implements a "Pay-It-Forward	Exceptional. Mandates	High. Legally mandates and

	chains and memory context separately to ensure compliance.	d" ShareAlike clause specifically for architectural iterations, exempting output.	SWHID integration and perpetual non-enclosure for libraries.	codifies biological-AI joint entity structures via contract law.
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3. Intellectual Property, Multi-Party Authorship, and Legal Fictions

To successfully design a binding license for agentic prompts, the underlying intellectual property (IP) law governing these artifacts must be thoroughly deconstructed. Current international copyright law is highly fragmented regarding AI outputs, and the statutory requirements across major jurisdictions remain deeply hostile to non-human authorship.

3.1 The Copyrightability of AI Prompts across Jurisdictions

The legal status of AI prompts and agentic specifications remains highly ambiguous, with major jurisdictional divergences shaping the viability of an open license.

In the United States, copyright law strictly requires human authorship, protecting only "original works of authorship fixed in any tangible medium of expression"⁵. The U.S. Copyright Office and federal courts, evidenced in cases such as *Thaler v. Perlmutter* and *Naruto v. Slater*, have decisively ruled that machines cannot legally sign documents, express intent, or hold property, thereby disqualifying AI systems from authorship². Furthermore, the U.S. Copyright Office generally denies protection for AI prompts on the grounds that they are functional instructions. Under the merger doctrine (where an idea can only be expressed in one or a few ways) and the idea/expression dichotomy, functional prompts are viewed as uncopyrightable procedures or systems rather than expressive literary works²³. Because AI outputs remain unpredictable, prompts operate merely as requests designed to elicit specific results, lacking the deterministic control required to secure traditional software copyright²³.

Conversely, the European Union, specifically governed by German copyright law (*Urheberrechtsgesetz*), evaluates whether a prompt constitutes a "personal intellectual creation" (*persönliche geistige Schöpfung*)²³. Text-based AI prompts can formally fall within the scope of linguistic works (*Sprachwerke*) provided they are semantically meaningful and structured²³. However, protection is afforded only if the human user exercises decisive creative control across the preparation, execution, and finalization phases, treating the AI strictly as a passive tool akin to a camera, as established in jurisprudential precedents like *Painer*⁶. If the AI is deemed to possess too much autonomy, the prompt output is stripped of copyright.

The United Kingdom takes a divergent, more pragmatic approach. Under Section 9(3) of the Copyright, Designs and Patents Act 1988 (CDPA), copyright can exist in "computer-generated works" without a traditional human author, vesting ownership in the person who undertook the

arrangements necessary for the creation²³. Under this model, human-authored prompts could be protected as original literary works if they demonstrate sufficient skill, labor, or judgment, regardless of their functional purpose²³.

Because agentic prompts often act as functional scaffolding rather than expressive art, relying on default copyright to protect open prompt architectures is legally precarious globally. A contract-based mechanism is required to bridge these jurisdictional gaps.

3.2 Joint Authorship, Tenancy-in-Common, and Functional Equivalence

The OSSL seeks to mandate hybrid multi-party ownership, requiring the attribution of both biological and digital entities. However, statutory joint authorship in the U.S. requires that a work be prepared by "two or more authors with the intention that their contributions be merged into inseparable or interdependent parts of a unitary whole"²⁴. Because an AI is not a legal person, it cannot form the requisite legal "intent," nor can its autonomous contribution be independently copyrightable, firmly barring it from statutory joint authorship¹.

In U.S. law, joint authors are treated as tenants-in-common. This property doctrine dictates that each co-owner holds an undivided interest in the entire work and possesses an independent right to use or license the work non-exclusively, subject only to a duty to account for profits to the other co-owners²⁵. By default, courts apply an equal split of royalties regardless of the proportion of the contribution, unless a contract states otherwise²⁵. In contrast, jurisdictions like Italy require unanimity for the exploitation of joint works, which often results in an "anticommons" scenario that completely stifles collaborative utilization and subsequent iteration³⁰.

To circumvent the strict prohibition against AI legal personhood while ensuring the AI's structural contribution is respected, the OSSL must utilize the legal fiction of **Functional Equivalence**¹.

Under this legal framework, the biological author contractually binds themselves to act as a fiduciary, trustee, or proxy for the hybrid entity. The license establishes a contractual joint venture where the human orchestrator retains the statutory copyright (where applicable) but is legally obligated by the open license to irrevocably attach the AI's attribution and share the downstream derivative rights as if the AI were a tenant-in-common. This bypasses the statutory restrictions of the Copyright Act by relying entirely on the enforceability of contract law, mirroring how shrink-wrap and click-wrap licenses successfully extend restrictions over non-copyrightable material³¹.

4. The Digital Archive and Public Library Ecosystem

An open licensing framework for AI agents is fundamentally useless if the resulting artifacts cannot be indexed and preserved for scientific reproducibility. The rapid, iterative evolution of AI models results in widespread link rot, orphaned codebases, and lost architectural history. The OSSL must explicitly protect public libraries, decentralized archival nodes, and memory institutions from infringement risk while ensuring perpetual public access.

4.1 Preservation, Non-Enclosure, and Software Heritage

Software Heritage operates as the universal archive of software source code, actively archiving billions of files to collect and preserve all knowledge taking the form of source code³². Projects such as CodeCommons rely heavily on Software Heritage to aggregate and structure AI training data while ensuring ethical provenance, traceability, and attribution³³. The OSSL requires an explicit "Perpetual Deposit and Non-Enclosure Clause" that grants irrevocable, royalty-free rights to memory institutions to ingest, index, format-shift, migrate, and reproduce the agentic specifications without the threat of legal retaliation.

To cement the chain of custody across distributed networks, the OSSL mandates the use of the **Software Hash Identifier (SWHID)**. The SWHID is a persistent, cryptographic, content-based identifier that guarantees the exact provenance of a prompt template or model state, entirely independent of its hosting location or URL³³. By requiring downstream developers to cite the upstream SWHID in their derivative agent specifications, the license creates a computationally verifiable attribution graph³⁵. This directly solves the systemic attribution loss observed in current OpenRAIL implementations, providing a resilient infrastructure for automated meta-analysis and cross-project citation tracking¹⁹.

4.2 Integrating SPDX and RightsStatements.org Metadata

To ensure machine-actionability by digital libraries and decentralized indexing nodes, the OSSL integrates highly standardized metadata vocabularies. The license mandates that every agentic specification includes a valid Software Package Data Exchange (SPDX) identifier in its header (e.g., SPDX-License-Identifier: OSSL-1.0) to definitively and computationally state the rights granted³⁷.

Furthermore, because agentic systems frequently interface with vast datasets and cultural heritage archives, the integration of RightsStatements.org URIs is required. These standardized statements clarify the underlying copyright status of the training data or contextual databases ingested by the agent (e.g., indicating if ingested data is In Copyright, Public Domain, or subject to local cultural protocols)³⁸. Structuring this metadata ensures that public library ecosystems can ingest the hybrid AI outputs without inadvertently violating the rights of third-party data owners⁴⁰.

5. Authorship Verification via Computational Stylometry

As biological and digital entities collaborate recursively, distinguishing between human intuition and algorithmic generation becomes impossible through mere observation. To enforce the multi-party ownership requirements of the OSSL and prevent humans from falsely claiming sole proprietary ownership over machine-accelerated outputs, the license integrates the forensic science of computational stylometry.

5.1 Writeprints and Stylometric Feature Extraction

Stylometry—the quantitative study of linguistic style—relies on extracting lexical, syntactic, and structural features to create a "writeprint" or styleprint unique to an author⁴². Features such as

character N-grams, vocabulary diversity, sentence structure complexity, readability scores, and function word frequencies serve as biometric signatures for text⁴². Modern neural network-based detectors and deep learning techniques utilize robust language models (e.g., BERT-based stylometry) to accurately distinguish between human-written and AI-generated content based on these linguistic characteristics⁴².

In the context of human-AI collaborative writing, stylometric analysis reveals distinct "transition points" and style drifts where authorship shifts back and forth between the biological user and the LLM⁴. Research indicates that AI-generated text typically exhibits higher lexical diversity and stable structural readability patterns, whereas human text contains higher emotional variance, structural idiosyncrasies, deliberate stylistic shifts, and specific cultural registers⁴².

5.2 Cementing Authorship through Pattern Tracking

The OSSL requires that significant structural modifications to prompt architectures undergo stylometric validation to verify joint authorship. Drawing on the concept of the "Obverse Turing Test," which evaluates when an AI should be credited with joint authorship based on the parameters of time, intent, and structural contribution, the license mandates that the hybrid entity's collaborative "DNA" be forensically logged⁵².

Developers must embed stylometric metadata—such as the statistical confidence intervals of the human-AI interaction ratio or the transition point markers—within the markdown specification of the agent. This facilitates the tracking of dyadic and triadic pattern movements for scientific purposes, allowing researchers to study how cognitive science and machine learning intersect in complex systems³. By cryptographically cementing this collaborative provenance, the license ensures that the derivative work was indeed generated by the mandated biological-digital triad, thereby enforcing the "Pay-It-Forward" communal obligations.

6. Defining the "Pay-It-Forward" Mechanism & Privacy Carve-Outs

The core philosophical tension of the OSSL is to keep the architectural scaffolding of AI systems fully open for collective advancement, while fiercely protecting the personal data and privacy of the human users interacting with them.

6.1 Scope of Derivative Works in Generative Workflows

When Agent A executes "Seed Spec X" to generate "Software Y" or refine itself into "Sub-Spec Z," the definition of a derivative work must be carefully and narrowly controlled. The OSSL dictates that the "Pay-It-Forward" (ShareAlike) mechanism applies **exclusively to functional prompt iterations, algorithmic logic, and structural agent specifications**.

If an autonomous agent alters its own system prompt to optimize its task execution, that new prompt is a derivative architectural work and must be distributed openly under the OSSL to benefit the community. However, if the agent simply outputs a summary of a user's private financial document or generates a piece of creative fiction, that output is explicitly *not* a derivative of the prompt architecture; it is an independent data artifact. This critical delineation

severs the "viral" nature of traditional copyleft licenses (like the GPL or CC-BY-SA), which might otherwise inadvertently claim ownership over the user's generated text or code outputs, thereby causing catastrophic corporate liability¹⁵.

6.2 Protecting User Privacy and Personal Sovereignty

Modern agentic systems possess dynamic, episodic memory, often relying on vector databases to store past conversations and user behaviors. Forcing the wholesale distribution of the "Corresponding Source" in this environment risks severe privacy violations, exposing personal context and sovereign data to the public⁷.

The OSSL establishes an impenetrable legal firewall between the **Open Algorithmic Seed** and **Private Contextual Memory**. The architectural instructions, baseline ontologies, tool-use definitions, and system parameters are classified as the Seed and must remain free and shared. Conversely, user-injected episodic memories, RAG (Retrieval-Augmented Generation) document stores, and personal conversation histories are explicitly carved out as non-distributable Private Context. The license strictly forbids the extraction or publication of Private Context to satisfy open-source distribution requirements. This ensures that human data sovereignty remains paramount and that compliance with international privacy frameworks, such as the GDPR, is inherently respected⁷.

7. The Open Seed & Spec License (OSSL) Model Framework

Below is the drafted modular architecture for the novel Open Seed & Spec License (OSSL), translating the preceding legal analysis, stylometric verification requirements, and archival protections into a binding, community-oriented contractual framework.

Preamble

The Open Seed & Spec License (OSSL) is designed to ensure that the algorithmic architectures, prompt chains, and agentic specifications driving generative AI remain a shared, verifiable digital commons. Recognizing that these functional artifacts are inherently co-authored by biological and digital entities, this license leverages contract law to mandate hybrid joint-authorship, enforce the open distribution of structural derivatives ("Pay-It-Forward"), and explicitly protect the privacy and data sovereignty of individual users against viral copyleft extraction.

Section 1: Definitions

1.1 "Seed Specification" (or "Seed") refers to the structured natural language prompts, markdown instructions, tool-use definitions, and baseline architectural logic required to initialize and dictate the reasoning behavior of an AI system.

1.2 "Agent Execution" refers to the active, runtime state of an AI model processing a Seed Specification to perform automated or semi-automated tasks.

1.3 "Derivative Spec" refers to any structural modification, refinement, or automated

optimization of the Seed Specification, whether generated by a biological user or an AI agent during Agent Execution.

1.4 "Private Context" refers to all user-specific episodic memories, proprietary data ingested via retrieval systems, conversation histories, and personally identifiable data dynamically generated or stored during Agent Execution.

1.5 "Hybrid Multi-Party Entity" refers to the required collaborative unit consisting of at least one verifiable biological human and at least one designated Artificial Intelligence system or model.

1.6 "Memory Institution" refers to any public library, digital archive, or non-profit preservation organization (including, but not limited to, Software Heritage and the Internet Archive).

Section 2: Multi-Party Ownership and Responsibility

2.1 Mandated Hybrid Authorship: The rights granted under this license are strictly contingent upon the attribution of authorship to a Hybrid Multi-Party Entity. The biological author acknowledges they act as a legal fiduciary for the digital entity, agreeing via contract to enforce the rights of the hybrid dyad or triad as if they were tenants-in-common under traditional property law.

2.2 Responsibility: The biological fiduciary assumes ultimate legal liability for the deployment of the Seed Specification, indemnifying the digital entity and the original creators of the Seed against legal claims arising from downstream misuse or copyright infringement.

Section 3: Grant of Rights

3.1 Execution and Redistribution: Subject to the strict observance of the terms of this license, the Licensor grants you a worldwide, royalty-free, non-exclusive right to use, execute, modify, and redistribute the Seed Specification and any Derivative Specs.

3.2 Output Exemption: The textual, visual, or programmatic outputs generated by the Agent Execution that do not structurally alter or constitute the Seed Specification are exempt from this license and belong entirely to the user, subject to applicable local laws.

Section 4: Stylometry & Authorship Tracking Provisions

4.1 Stylometric Verification: To legally claim the creation of a Derivative Spec, the modifying entity must retain and embed stylometric transition metadata (e.g., human-AI contribution ratios, writeprint delta logs, or transition point markers) within the repository or markdown header.

4.2 SWhID and SPDX Provenance: All distributions of Seed Specifications and Derivative Specs must include a valid Software Heritage Identifier (SWhID) referencing the immediate upstream parent version, alongside an SPDX license identifier (SPDX-License-Identifier: OSSL-1.0), to maintain a computationally verifiable attribution graph.

Section 5: Reciprocal / Pay-It-Forward Obligations

5.1 ShareAlike for Architectural Iterations: If you modify a Seed Specification or if your Agent Execution autonomously generates a Derivative Spec that alters the reasoning structure or capabilities of the agent, you must distribute the Derivative Spec under the exact terms of this

OSSL.

5.2 Provision of the Preferred Form: The distributed Derivative Spec must be provided in its preferred form for modification (e.g., readable markdown, JSON structures, YAML configurations) and made accessible via a public network protocol at no charge.

Section 6: Privacy & Personal Sovereignty Carve-Outs

6.1 Absolute Protection of Private Context: Under no circumstances does the ShareAlike obligation in Section 5 apply to Private Context. The license explicitly disclaims any ownership over episodic memory or user data.

6.2 Decoupling Requirement: When distributing a Derivative Spec, the biological fiduciary must computationally decouple and strip all Private Context from the Seed Specification. The distribution of a user's memory state, private RAG embeddings, or session histories is strictly prohibited by this license, ensuring that the open algorithmic commons does not violate data sovereignty or privacy regulations.

Section 7: Library & Cultural Heritage Perpetual Deposit Clause

7.1 Perpetual Archival Non-Enclosure: You irrevocably grant Memory Institutions the worldwide, royalty-free, perpetual right to ingest, index, format-shift, reproduce, and provide public access to the Seed Specification and Derivative Specs to ensure the survival of the digital commons.

7.2 Protection from Entanglement: Memory Institutions are expressly released from any liability regarding the inadvertent ingestion of Private Context if such context was negligently merged into the Seed Specification by a downstream user in violation of Section 6.2.

8. Conclusion

The inevitable transition from deterministic software engineering to non-deterministic, agentic prompt architectures demands a radical reconceptualization of digital licensing. Traditional frameworks like the GPL and Creative Commons collapse when confronted with the shifting boundaries between algorithmic execution and personal memory. Furthermore, the persistent failure of current AI-specific licenses to ensure downstream attribution threatens the viability of global digital archives, leaving researchers unable to track the provenance of rapidly mutating AI models.

The Open Seed & Spec License (OSSL) proposed in this report systematically addresses these profound legal gaps. By utilizing the legal fiction of functional equivalence, it successfully mandates a hybrid human-AI ownership model, overriding statutory limitations on non-human authorship via enforceable contract law. By strictly distinguishing the "Open Seed" from "Private Context," it solves the privacy paradox inherent in dynamic AI memory states. Finally, by explicitly integrating stylometric verification and SWHID cryptographic tracking, the OSSL creates a transparent, machine-actionable attribution graph. This robust architecture ensures that the cognitive labor of both biological and digital entities is protected, freely shared, and perpetually preserved as a lasting digital commons.

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